

Exploring Transformative Justice Principles to Inform Survivor-Centered Design for Muslim Women in the United States

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ABSTRACT

Domestic violence (DV) is a social, political, and legal problem and requires contextual examination. In the U.S., earlier advocacy work focused on law reform to empower survivors in influencing the public and state in taking DV seriously and providing resources to support and protect survivors. However, harm is still perpetuated systemically and socially for survivors, especially from religious and racial minorities. In my dissertation work, I focus on DV within the Muslim population in the U.S. due to the unique issues Muslim survivors face when dealing with governmental services and service providers (e.g., gendered Islamophobia, racial discrimination, punitive actions) and within the Muslim community itself (e.g., community trauma, untrained faith leaders in dealing with abuse). I argue that in order to validate the Muslim survivor's experience, provide competent resources and information, and allow for informed decision making, a transformative justice (TJ) approach supported by Islamic feminism and trauma-informed healing concepts must be integrated into design, to provide a multidimensional approach to tackling DV within the Muslim community. I will conceptually explore the strengths and weaknesses of using a TJ model through using design as a mode of social inquiry to elicit and understand the social phenomena of DV and TJ within sociotechnical interventions.

CCS CONCEPTS

• **Human-centered computing** → **Empirical studies in HCI**; • **Social and professional topics** → *Social Justice*.

KEYWORDS

social justice, social computing, domestic violence, Islamic HCI

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1 INTRODUCTION

Domestic violence (DV) is a social, political, and legal problem and requires contextual examination [11, 40]. I use the term domestic violence (DV) to encompass intimate partner violence and family violence, including violence inflicted by intimate partners, parents, siblings, children, extended family members, in-laws, community members, and community institutions, all of which “can be directly and actively involved in dynamics of abuse” [30]. I consider the following categories as DV: all forms of physical, psychological, sexual, economic-social (e.g., preventing one from work or education, forcing one to marry or divorce), and spiritual abuse (“any attempt to exert power and control over someone using religion, faith, or beliefs”¹), using coercion, threats, and intimidation, using children, citizenship, or residency privilege, isolation, blaming, and denying abusive acts. Extending DV's definition to include the prior forms corresponds to the DV dynamics found within Muslim and immigrant populations [2, 5, 10, 10, 19, 30, 35]. In the United States, domestic violence (DV) was considered a private matter, not requiring intervention by the state, and was only nationally criminalized in 1994 by the U.S. government through the Violence Against Women Act (VAWA). Although law reform helped move closer to those goals, it had failed to center women's agency throughout the process. The criminal justice system's view of resolving DV remains limited, where terminating the relationship is the end goal of its interventions, which comes with the risk of retaliation and further abuse [4, 11, 24].

In my dissertation, I will be focusing on the Muslim population in the U.S. because Muslims are an at-risk population of prejudice and systemic discrimination in the U.S., suffering historic Islamophobia from the early 20th century and rising ever since [25]. Nearly 75% of Muslim Americans either know or have experienced acts of discrimination against Muslims following September 11, 2001, and recently, hate crimes have been amplified by hate speech promoted by politicians and the Muslim ban [1, 3, 32, 38]. Such factors resulted in a complex relationship between the Muslim community and law enforcement. Given the tight coupling of DV and the criminal justice system, this complex relationship directly reflects on Muslim DV victims-survivors, forcing them to refrain from state services for protection and aid [25, 38]. In response to structural racism and punitive injustices found in the criminal justice system towards minorities and people of color, advocates have been calling for alternative justice models to address conflict and violence and to replace repressive practices. Among alternative approaches that have

¹Webmed. 2020. Spiritual abuse: How to identify it and find help. (December, 2020). Retrieved from <https://www.webmd.com/mental-health/signs-spiritual-abuse>

been developed and used, and showed promise in addressing ethnic, racial, and political conflict and violence are the restorative and transformative justice models, where community practices are capitalized on and enhanced to address harm [7, 12, 16, 18, 24, 28, 37]. Transformative justice (TJ) differs from restorative justice (RJ) in its aim to connect violence and crime to the underlying socio-political and economic structures that perpetuate them, and ultimately, seeks to transform those unjust conditions through repairing harm, centering survivors, and transforming communities by acknowledging and addressing systemic inequalities [12, 36, 37, 41]. Transformative justice is particularly useful for two situations in DV: (1) when the people involved in violence belong to a marginalized identity that is subjected to further harm by the criminal justice system, and (2) when the victim-survivor wishes to remain in the relationship or not entirely exclude the abuser (e.g., through co-parenting, child support) [7, 12, 18, 24, 37]. Given the complexity of DV dynamics and consequences, the problematic relationship between the Muslim community and the state, and the unique needs of Muslim survivors (e.g., spiritual counseling and mediation, immigration status, community support), advocates and scholars find TJ to be a powerful alternative to tackling DV [12, 31, 36, 37, 41]. Domestic violence work in HCI largely focused on survivors' technology safety concerns, examined the role of technology in the IPV ecosystem, and designs for reporting violence [6, 14, 20–22, 26, 33], commonly placing the burden on the survivor, with some exceptions [8, 9]. I contribute to the conversation of addressing the survivor's needs and extending the intervention to include the abuser and the community, to relieve the burden placed solely on survivors, and fundamentally, seek social transformation. Additionally, prior HCI work has been in Western contexts, whereas I examine a minority in the U.S. facing historical discrimination. My doctoral work aims to center survivors in their healing and help-seeking choices while providing contextual DV definitions and services and expanding the scope of intervention to include abusers and community transformation. Furthermore, contributing theoretically and empirically to understanding the DV phenomena from a sociotechnical standpoint and informing HCI research on expanding our role as researchers to account for structural inequalities.

2 RESEARCH QUESTIONS

In my dissertation, I seek to inform the overarching research question:

How can we incorporate transformative justice (TJ) attributes into design using trauma-informed and Islamic feminism approaches, while being rooted in the sociocultural, historical, and political context of Muslim domestic violence survivors in the U.S.?

Empirically, I will be answering the following corresponding research sub-questions:

RQ1: What are the current TJ practices in addressing DV in the Muslim community?

RQ2: What is the role of ICTs and social media features in supporting survivors' decision making and transforming the community?

RQ3: How do we integrate Trauma-Informed Care principles, facilitate working together as a team, support survivors-victim, and promote community accountability in design?

RQ4: When thinking about DV intervention from a TJ lens, what

are the conceptual strengths and weaknesses?

Next, I explain the methods I will conduct to answer the prior questions.

3 METHODS

I choose to follow design as a mode of social inquiry approach, "where design becomes a means rather than an end" [39], meaning to use design as an instrument to examine social phenomena rather than as a way to solve a problem [15, 39]. Using design as a mode of inquiry is to understand how design shapes social and political experiences, why and how circumstances could be changed, and produce desired conditions, relations, or values. I see this approach as appropriate given that transformative justice and DV have yet to be explored from a sociotechnical standpoint. I aim to meet traumatized survivors where they are, trust their judgment, and support their decision-making process while providing tools to nurture their capacity to make informed decisions [24]²³. I will create prototypes that incorporate TJ concepts; such as culturally sensitive content, to assist in assessing and defining DV rooted in an Islamic feminist perspective, trauma-informed materials and resources, and accountability attributes, all in a space for the survivor, abuser, facilitator, and their allies to share (i.e., community pods). I will evaluate how Muslim survivors, subject experts (i.e., TJ experts and Muslim service providers), and other key stakeholders (i.e., abusers, imams, mainstream service providers) resonate with a trauma-informed transformative justice approach to designing CSCW systems. The scope of my methods covers two steps: (1) Artifact assessment, where I assess toolkits of best practices to address domestic violence using a transformative justice approach, specifically around survivors' support and community accountability and transformation. (2) Concept validation: where I translate theoretical attributes selected in step (1) into design concepts and prototypes, and through participatory activities with direct and indirect stakeholders (e.g., survivors, abusers, social service providers). Data will be analyzed deductively and inductively using grounded theoretical methods [13]. Emergent themes will be explored iteratively using open/axial coding, memoing, and affinity diagramming methods. From TJ advocates, DV social service providers, and faith and community leaders, I seek to understand practices and values related to TJ. Specifically around community accountability, supporting survivors with resources, and trauma-informed healing within an Islamic cultural context, and how they facilitate community sessions that include the abuser, their allies, community members, and others such as faith or community leaders. I will highlight concerns and aspirations survivors may have when participating in community accountability settings and using technology as a supplementing tool to mediate and resolve harm. For future iterations, I will evaluate which concepts of TJ are appropriate to merge within ICTs, which are difficult to mirror, or are concerning when relying on technology as a medium (e.g., privacy, social pressure), and how sociotechnical interventions can evolve to transform communities when dealing with acute social problems.

²NCDVTMH (2011). Creating Trauma-Informed Services: Tipsheet Series: A Trauma-Informed Approach to Domestic Violence Advocacy. (2011). PsycEXTRA Dataset. doi:10.1037/e566332013-001

³Abuse, S., Health, U. D. o., & Services, H. (2014). A treatment improvement protocol: trauma-informed care in behavioral health services.

4 WORK IN PROGRESS

In this section, I explain two works in progress: a study I am wrapping up that identifies challenges Muslim DV survivors face in the U.S. and the current and envisioned role of technology aiding in the process, and a project where I analyze artifacts provided by DV organizations, which I use to import theoretical attributes into design.

4.1 Identifying challenges in help-seeking for Muslim DV survivors

To follow up on my prior work, where I focused on technology's role within DV dynamics in a Saudi context, I sought to understand further how technology aided survivors' help-seeking process in the U.S.. Initially, I examined available DV mobile applications, categorized their purpose and features, and tested features of one to two applications with two participants; a Muslim DV survivor and advocate and a social worker in the Midwest. The intention was to see if professionals and survivors used DV computing tools and if they were inclusive of cultural-specific needs (e.g., language, representation, spiritual content). Realizing there were gaps in use and the tools' design inclusivity and representation, among other issues, I pivoted to study the core issues Muslim survivors in the U.S. faced in DV situations.

Methods: I conducted virtual participatory interviews with a total of 23 participants; Muslim service providers (13), imams and imam liaisons (6), and Muslim DV survivors (8), of which four participants who identified as social workers, liaisons, or advocates also identified as survivors. The study's purpose was to empirically understand the challenges faced by the Muslim community when seeking DV services in the U.S. and produce design concepts to address the identified challenges. The technologies considered were social computing (e.g., for empathy building, transparency), ubiquitous computing (e.g., bias screening tools), and mobile technologies (e.g., telehealth, DV reporting). The interviews consisted of two parts: 1) Empirical questions around participants' experience with domestic violence as survivors, social service providers, and faith leaders, their current technology use and experience, and the concerns and challenges faced within mainstream service provision. 2) Design questions to elicit how participants might envision technologies to address needs, concerns, and goals, and what are technology's limitations and risks in this context.

Findings: In the first round of analysis, I found that Muslim survivors are further marginalized by mainstream service providers (e.g., shelters, counselors), mainly through prejudice and systemic discrimination, and by their faith and immediate communities, through shame and blame, and at times, using religion to deter survivors from departing the abuse. I concluded that there exists a pressing need for comprehensive approaches to designing sociotechnical systems that center survivors, account for their historical traumas and systemic injustices, along with their immediate needs to build, heal, and sustain their living while in and away from the abuse. Survivors do not always wish to end the relationship due to different factors, including their immigration status, choice to co-parent, fear of retaliation post-departure, or wanting to repair the relationship. Thus, interventions must be customized to meet the needs and choices of the person being harmed. If they wished

to leave, interventions must encompass capacity and skill-building until they can and want to decide to live independently. This work remains in-progress and requires a second round of analysis which will inform the dissertation's early research tasks. As a result of this study, I deduced the potential suitability of transformative justice as a model to integrate into design in restoring harm and transforming social and political conditions specifically within marginalized populations.

4.2 Preliminary artifacts evaluation

To understand transformative justice in practice, sensitize myself towards trauma-informed care and DV within Muslim communities, and assess productive avenues where TJ can lend itself in sociotechnical interventions, I analyzed artifacts in the form of toolkits, handbooks, and strategy guides distributed by organizations that have been actively dealing with DV, TJ, and trauma-informed care (TIC) within a culturally-based context for years (e.g., [27, 30]). Listed next, I identify examples of key components of TJ and grassroots practices through reviewing preexisting resources that provide contextually relevant actionable items to help guide the prototype design process. The artifacts inspected include the "Innovative Strategies to Address DV in Asian and Pacific Islander Communities" guide, which provides an extract of years of experience working with Asian and Pacific Islander (API) women experiencing violence, where they modified mainstream interventions to meet the needs of the API community in the U.S. [30]. This resource closely overlaps with the cultural nuances of our user group. For example, the definition of DV and power and control is expanded to include family violence, leaving as the goal of the intervention is reconsidered to account for other options particularly for immigrant women, and the unit of intervention considers families and close communities as extensions to the individual unit of intervention found in mainstream DV services [29]. The second resource is the Creative Interventions Toolkit that promotes a community-based intervention to violence approach. This approach attempts to end isolation and resolve violence for those who are most affected (i.e., survivors-victims, offenders, friends and family, community) from a TJ perspective [27]. Lastly, I consider a pool of restorative justice guides [16, 23, 34], trauma-informed care screening and assessment tools, and websites on TJ approaches and resources to further support integrating TJ into design [17, 30, 41].

5 EXPECTED CONTRIBUTIONS

I summarize my intended contributions to the field of HCI in the following: (1) Extend domestic violence interventions to include the community, and fundamentally, seek social transformation. (2) Where prior HCI work has primarily focused on Western contexts, I examine a minority in the U.S. facing historical discrimination. (3) Contribute theoretically and empirically to understanding the domestic violence phenomena from a sociotechnical standpoint. Lastly, (4) Inform HCI research on how to expand our role as researchers to account for structural inequalities

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